Annex B

Format for providing public comments to DIFCA on Consultation Paper No.1 of 2022 Proposed Amendments to the Real Property Law DIFC Law No. 10 of 2018

Dubai International Financial Centre

Note 1: DIFCA reserves the right to publish, including on its website, any comments you provide. However, if you wish to remain anonymous, you must expressly request at the time of making comments that this should be the case.

Note 2: The second column, 'comments on proposed policy' relates to the policy explained in the CP paragraphs specified. The third column, 'comments on legislation' refers to the draft legislation reflecting the proposed policy.

Note 3: It is possible that you may not have any comments, either on the proposed policy or draft legislation, or may have comments on one and not the other. You may leave a blank column if you either agree to the proposed position, or you have no concerns relating it.

Note 4: If there are any ambiguities relating to the proposed policy or draft legislation, you may raise those in your comments.

Name of individual / entity providing comments:	

No	Comments on proposed policy	Comments on legislation
Removal of right of Foreclosure		
Q1: Do you agree that there is a contradiction in the intention of the Real Property Law between the foreclosure remedy in favour of a Mortgagee under Articles 63(1)(e) and 70 and the equity of redemption principles under Article 58? If not, please provide details.		
Q2: Do you have any further comments in this regard that you would like to be taken into consideration?		

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No	Comments on proposed policy	Comments on legislation
The exercise of a Power of Sale by a Mortgagee		
Q3: Do you agree that a Mortgagee should not have to obtain a Court Order in order to exercise a power of sale upon the default of a mortgage by a Mortgagor? If not, please provide details.		
Q4: Do you agree with the removal of the provision at Article 67(1) relating to the payment of sale proceeds into the Court? If not, please provide details.		
Q5: Are there any other issues arising in connection with the powers of Mortgagees in the Real Property Law which are in your opinion not adequately or appropriately dealt with or need further clarification? If so, please provide details.		
Miscellaneous enhancements		
Q6: Do you have comments with regards to this proposed amendment?		

Any personal data provided by you will be used, recorded and processed by us in accordance with the relevant statutory basis including the Data protection law 2007, We do not disclose any information you provide to any third parties or other government authorities except where (i) such disclosures are necessary to fulfill our obligations to you in which case we will require such third parties to agree to treat it in accordance with thus policy; (ii) required by applicable laws, courts orders, or government regulations (for example to prevent or detect crime); (iii)you give us permission to do so, please see the Data Protection law 2007 for a full account of your rights relating to data protection.

Miscellaneous or general comments		

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